

		to use funds to defend against attacks on the Trust, the motion is DENIED as to use of Trust assets by the co-trustees Harris and Doorneweerd to defend Petitioner's attempt to invalidate the Third Amendment. The parties should be prepared to discuss, however, any possible use of Trust funds to defend Harris on the Elder Abuse claim. Respondents are ORDERED to give notice.
7	Koenig – Trust; 30-2024-01414937	Motion to Deem Vexatious Before the court is Trustee Tammie Harding's motion to declare Petitioner Krista Koenig (Koenig) a "vexatious litigant" under Code of Civil Procedure section 391. (ROA 418.) The motion also requests that the court order Koenig to furnish a security under Code of Civil Procedure section 391.1 and that the court grant a prefiling order against Koenig under Code of Civil Procedure section 391.7. The motion to declare Koenig a vexatious litigant and the requests for a prefiling order and an order requiring a security are all DENIED without prejudice. I. Request for Judicial Notice The court GRANTS Koenig's request for judicial notice as to requests 1-17. The request is granted only as to the existence of the identified documents but not for the truth of any matter asserted therein. (Evid. Code § 452 (d), 453; see <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482 [judicial notice cannot be taken of truth of matters asserted in court records].). The court also judicially notices ROAs 63, 121, 127, 132, 189, 213, 234, 260, 374, and 387 Minute Order 12/02/2025 on its own motion. (Evid. Code § 452(d).) II. Motion to Declare Koenig a Vexatious Litigant Code of Civil Procedure section 391(b)(3) defines a vexatious litigant as someone who "while acting in propria persona, repeatedly files unmeritorious motions,

pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

Trustee argues Koenig fits this definition by filing numerous motions and ex partes and propounding voluminous discovery including but not limited to the following: motion for order granting leave to file and record notice of pendency of action (ROA 63); motion for leave to file verified amended petition (ROA 121); ex parte application for order granting leave to file notice of lis pendens (ROA 127); motion to strike improper ex parte filings (ROA 189); ex parte for temporary restraining order and order to show cause (ROA 213); ex parte for order directing trustee to request 45-day postponement of foreclosure sale (ROA 260); motion to strike (ROA 374); ex parte for an order shortening time (ROA 371); and set one of Krista Koenig’s request for production of documents.

A court has discretion to determine what “repeatedly” and “unmeritorious” means for purposes of within section 391(b)(3). (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971.) “While there is no bright-line rule as to what constitutes ‘repeatedly,’ most cases affirming the vexatious litigant designation involve situations where litigants have filed dozens of motions either during the pendency of action or relating to the same judgment.” (*Id.* at p. 972.) Further, the repeated motions “must be so devoid of merit and be so frivolous that they can be described as a flagrant abuse of the system [and] have no reasonable probability of success.” (*Ibid.*)

Koenig has filed at least eighteen petitions, supplements, motions and ex partes in this proceeding. Particularly, there was a string of ex partes and motions during the last four months of 2025 that stood out to the court. Although many of the ex partes were procedurally inadequate or had no exigency, they are not so devoid of merit to be a flagrant abuse of the system or to have had no reasonable probability of success. For example, the 09/08/2025 minute order denied two ex partes because of a failure to disclose similar prior ex partes as required and because of a lack of exigency. Some of the ex partes or motions may be considered devoid of merit, however no judicial officer

expressly found any of them to be frivolous. Additionally, the one set of discovery attached to this motion is insufficient to be deemed "unnecessary discovery." Based on the discovery record provided in connection with the motion, the court cannot deem Koenig vexatious.

The trustee's reply argues the totality of Koenig's actions amount to "other tactics that are frivolous or solely intended to cause unnecessary delay." However, Koenig's filings do not yet rise to the level of "numerous unsuccessful judicial challenges." (*Golen v. Allenby* (2010) 190 Cal.App.4th 616, 640.) Additionally, although the undisclosed related action may support a finding on the "other tactics" prong, that issue was only raised in reply and the general rule of motion practice is that new evidence in reply papers is not to be considered. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.)

The motion to deem Koenig a vexatious litigant is **DENIED**.

III. Issuance of Prefiling Order and Requirement of a Security

Trustee requests a prefiling order (Code of Civ. Proc., § 391.7) and an order requiring a security (Code of Civ. Proc., § 391.1(a)). Both orders apply only to a vexatious litigant. Because the court did not find Koenig to be a vexatious litigant, the requests are **DENIED**.

IV. Note of Caution

Although the court finds the conduct presented to the court does not yet meet the definition of a 391(b)(3) "vexatious litigant," Koenig is strongly cautioned that her conduct points towards some degree of vexatiousness.

The court is troubled by the string of ex partes and motions between late August and December 2025. Further, the ex partes and other motions appear to be supported by an unnecessary volume of declarations and memorandums of points and authorities. These filings are unusually litigious and tending towards a vexatious nature.

		Additionally, the previously unreported related case in Riverside County Superior Court causes concern. The fact that the present case and the Riverside case both involved title to the same property makes them related. (Cal. Rules of Court, Rule 3.300(a).) Koenig had a duty to serve and file a notice of related case no later than 15 days after Koenig learned of the existence of the case. (Cal. Rules of Court, Rules 3.300(b) and 3.300(e).) Although raised too late to be considered in connection with this motion, the separate proceeding could be considered in a future vexatious litigant motion. By this order, the Court in no way intends to discourage Koenig from utilizing the court's processes and makes no prediction as to how any issue in this proceeding may ultimately be adjudged or adjudicated. But Koenig is reminded she must participate in this proceeding appropriately and will be held to the same rules as other litigants before this court. (See <i>Wantuch v. Davis</i> (1995) 32 Cal.App.4th 786, 795.) The order is also made expressly without prejudice as to Trustee's right to file a subsequent motion to deem Koenig a vexatious litigant in this or another judicial proceeding in the event Koenig's conduct would support such a finding, whether alone or in addition to the conduct identified by trustee in this motion. The Trustee is directed to give notice.
9	Fung – Trust; 30-2026-01548357	Motion to Expunge Lis Pendens Respondent Michelle Fung's Motion to Expunge Lis Pendens (ROA 51) is DENIED. Pursuant to CCP §§ 405.22, 405.23, 405.30, 405.31, 405.34, and 405.38, Respondent Michelle Fung (Respondent) seeks an order expunging a lis pendens placed on property commonly known as 2602 W. Castor Street, Santa Ana, CA 92704 (Property) on the grounds Petitioners: (1) do not assert a real property claim against the Property and (2) cannot establish the probable validity of their claim.